

26SMUD00113 26SMUD00113

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-12

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Defendant seeks an order ex parte to stay the execution of the writ of possession that was issued following the trial held on July 28, 2026. She also seeks to vacate the judgment entered on that date. Defendant states that her absence at the trial was caused by the court's failure to implement or process a timely request for accommodations that was filed on July 6, 2026.. She further states that at the time of the trial, there was a motion for summary judgment pending, but that the trial occurred before that motion was heard and that the jury waiver was not effective because it was the result of an oral motion at the start of the trial by plaintiff to strike the jury demand and answer. (The court notes that the minutes reflect that the motion to strike the jury demand was granted, but the answer does not appear to have been stricken. Rather, plaintiff put on its case and the judgment followed the close of the evidence. There was no default judgment rendered.) Defendant notes that the court has previously recognized that accommodations needed to be made on a case-by-case basis. The need for the stay is a fear that absent a stay, the Sheriff will execute the writ and defendant will be evicted. Defendant notes that the court has the power to grant the relief she seeks.

According to defendant, the motion for summary judgment is a mandatory mechanism designed to resolve a case before trial, and that a trial cannot occur while a proper motion is pending. She notes that she had filed a motion for summary judgment, but the trial went forward anyway. And that the court ought to have granted her request for accommodation. Defendant states that the failure of the court to respond to her request, and then proceed with the trial, was error. She also asserts that if the court did rule on the request, she never received the order and was therefore deprived of her ability to respond to it. Because she was not present in

court due to a disability, she asserts that the court's order granting the motion to strike the jury demand was also error. And, she states, where a jury is properly demanded, the failure to empanel a jury is error per se and will void the judgment.

The court has gone back and looked at the history of this case. The docket does not reflect a request for accommodations filed by defendant on July 6. The most recent request on the docket filed before the July 28, 2026, trial is dated May 19, 2026. It was denied that day for reasons that are on the record. The earlier requests dated March 27, 2026, March 6, 2026, February 5, 2026, January 29, 2026, and January 28, 2026, were all denied except the January 28, 2026, request, which seems to have been resolved by the resolution of the next request. The court sees no requests for accommodation that are outstanding.

The court notes that defendant had filed a motion for judgment on the pleadings, which was filed and denied on June 22, 2026. Another motion for judgment on the pleadings was filed on July 2, 2026, and denied on July 13, 2026. The motion for summary judgment was filed the morning of the trial, July 28, 2026. Under CCP section 1170.7, a motion for summary judgment may be filed at any time in a UD case on 5 days' notice. On the same date, July 28, 2026, defendant filed an application to enforce confidentiality and for an OSC re: Contempt against plaintiff and counsel. That application was denied on July 28, 2026. Also on that day, defendant sought to shorten time on her summary judgment motion, which had apparently been set for August 11, 2026.

On July 26, 2026, Judge pro tem Woollacott noted that the parties had not stipulated to a judge pro tem. The matter was transferred to Judge Wayser on that date and all parties were ordered to appear in that department at 10:00 am that day. The parties did appear. Judge Wayser informed defendant that the MSJ was not on calendar for that date. He ordered the parties to return at 1:30. At 1:30, defendant appeared by telephone even though she had been ordered to appear in person. The application for contempt was denied. The matter was then transferred to Department O and the parties were told to report there forthwith. Defendant objected, but the order was nonetheless issued. At 2:18, the matter convened in Department O before Judge Phillips. Defendant did not appear either in person or on the phone. Judge Phillips noted that defendant had been told that the matter would be tried that day in Department

O. The case was called for trial. Plaintiff moved to strike the jury demand. Plaintiff's motion was granted. Plaintiff then put on its case. The minutes reflect a judgment in plaintiff's favor as to a monetary sum of zero. (The original Minute Order reflected a stipulated judgment, but that was changed later that day by an order nunc pro tunc.) The court granted a judgment of possession in favor of plaintiff and determined the lease and rental agreement to be cancelled and forfeited. Judge Phillips advanced the motion for summary judgment and vacated it (likely because it was moot in light of the trial). Finally, Judge Phillips ordered the writ of possession to be issued forthwith.

On July 29, defendant filed a request for judicial notice. It does not appear that there was a ruling on that request.

The writ of possession issued on July 30, 2026. The court does not know whether it has been served by the Sheriff.

On August 3, 2026, defendant submitted an exhibit list, a notice of employee attendance, and a notice of oral testimony. There does not appear to have been any action taken on those submissions.

On August 11, 2026, after the trial and judgment, defendant filed two more requests for accommodation. The court will not divulge the confidential information in that request, but what defendant seeks is similar to the relief sought in the ex parte application.

The instant ex parte application was filed on August 12, 2026. The matter was eventually sent to this department for resolution.

The court now makes the following rulings. The application is DENIED. As to the requests for accommodation, the record does not reflect any such request that was not acted upon. Accordingly, that is not a ground to vacate the judgment or stay the writ. As to the jury issue, the court does not believe that this request has merit either. Defendant was present in court the morning of the trial. She then elected to return remotely, and then not to return at all. In her absence at trial, it is proper for the plaintiff to move to strike a jury. Had defendant been present and objected, the result might have been different. As to the pending MSJ, the MSJ was moot by virtue of the

trial. Even were it not moot, the court does not view it as timely.

While it can be brought at any time, it must be brought on five days' notice. Filing it the morning of the trial is an obvious and improper attempt to delay the trial. Even were that not defendant's motive, the fact remains that the motion was untimely. While the statute does say at any time, the requirement for notice impliedly requires that the motion be filed at least 5 days before the trial. Had it been timely filed, the court's view might be different. But due to the fact that it was not timely, the trial court's action vacating the hearing date is no ground to grant this application.

Accordingly, the application is DENIED. The current requests for accommodation are MOOT, but were they not moot, they suffer the same problems as the earlier requests.